

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                    |                                            |                                                                                                                                                                                                                                  |
|--------------------------------------------------|----------------------------------------------------|--------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Esme Trontz                     | Team:<br>Squad #16                                 | CCRB Case #:<br>202106303                  | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 10/15/2021 9:47 PM   | Location of Incident:<br>Hylan Blvd & Sharrott Ave | 18 Mo. SOL<br>4/15/2023                    | Precinct:<br>123                                                                                                                                                                                                                 |
| Date/Time CV Reported<br>Mon, 10/18/2021 8:50 AM | CV Reported At:<br>CCRB                            | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Mon, 10/18/2021 8:50 AM                                                                                                                                                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. PO John Gonzalez | 14229  | 936681 | 123 PCT |

| Officer(s)           | Allegation                                                               | Investigator Recommendation |
|----------------------|--------------------------------------------------------------------------|-----------------------------|
| A . PO John Gonzalez | Force: Police Officer John Gonzalez struck § 87(2)(b) with a vehicle.    | A . Substantiated           |
| B . PO John Gonzalez | Force: Police Officer John Gonzalez struck an individual with a vehicle. | B . Substantiated           |
| C . PO John Gonzalez | Abuse: Police Officer John Gonzalez damaged § 87(2)(b) property.         | C . Substantiated           |

### Case Summary

On October 18, 2021, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On October 15, 2021, at approximately 9:47 p.m., § 87(2)(b) was riding his motorcycle past the intersection of Huguenot Avenue and Amboy Road in Staten Island with a passenger sitting behind him. Police Officer John Gonzalez of the 123<sup>rd</sup> Precinct, who was stationed on the corner of the intersection, noticed § 87(2)(b) motorcycle did not have any license plates. Police Officer Gonzalez got into his vehicle and started following § 87(2)(b) down Huguenot Avenue as § 87(2)(b) ran several stop signs and red lights. As § 87(2)(b) approached Hylan Boulevard, Police Officer Gonzalez turned on the police lights in his vehicle, signaling to § 87(2)(b) to stop. § 87(2)(b) turned right onto Hylan Boulevard and continued driving without stopping.

Police Officer Gonzalez continued following him for about three-quarters of a mile to a mile southbound on Hylan Boulevard. After passing Seguin Boulevard, Police Officer Gonzalez decided to turn his lights off and cease attempting to stop § 87(2)(b). As they both approached Sharrott Avenue, about a mile and a half from Huguenot Avenue, § 87(2)(b) conducted a U-turn and drove between Police Officer Gonzalez's vehicle and another vehicle stopped at the light. Police Officer Gonzalez put his car in reverse and hit § 87(2)(b) motorcycle with the rear of his vehicle (**Allegations A and B: Force- Vehicle, Substantiated**). § 87(2)(b) motorcycle pinned his left leg onto the ground, and the accident caused damage to § 87(2)(b) motorcycle (**Allegation C: Abuse of Authority- Property Damaged, Substantiated**). § 87(2)(b) was arrested and later convicted of driving without a license. No one else was arrested or summonsed during this incident.

BWC video from Police Officer Gonzalez was received for this incident (Board Review #01).

### Findings and Recommendations

**Allegation (A) Force: Police Officer JOHN GONZALEZ struck § 87(2)(b) with a vehicle.**

**Allegation (B) Force: Police Officer JOHN GONZALEZ struck an individual with a vehicle.**

**Allegation (C) Abuse of Authority: Police Officer JOHN GONZALEZ damaged § 87(2)(b) property.**

§ 87(2)(b) was interviewed by the CCRB on October 25, 2021 (Board Review #02). Police Officer Jonathan Gonzalez was interviewed by the CCRB on January 25, 2022. Police Officer Gonzalez worked alone on the date of the incident and the passenger on § 87(2)(b) motorcycle could not be contacted for a statement, so no other witness civilians or officers were interviewed for this incident.

It is undisputed that § 87(2)(b) motorcycle had no license plates, that he ran stop lights and drove over the speed limit on Huguenot Avenue and Hylan Boulevard, and that he attempted to evade Police Officer Gonzalez's attempt to stop him. The entire route § 87(2)(b) took while Police Officer Gonzalez followed him is attached as a map in IA #26 (Board Review #12).

Police Officer Gonzalez testified that, somewhere between Seguin Boulevard and the next street, he turned off his vehicle's lights, intending to cease the stop. He made this decision because of the NYPD's no-pursuit policy, and § 87(2)(b) driving – his disobedience of red lights and swerving into the opposite side of the road – was “beyond reckless.” § 87(2)(b) was also back on the right

side of the road at this point and showed no sign of stopping, so Police Officer Gonzalez determined there was no purpose in attempting to pull him over anymore. Police Officer Gonzalez continued following § 87(2)(b) down Hylan Boulevard, though no longer attempting to enact a stop. He did not clarify in his interview why he continued following § 87(2)(b) though he was merely continuing in the same direction he was already driving. Police Officer Gonzalez believed § 87(2)(b) was driving at or just above the speed limit at this time because he had slowed down significantly.

§ 87(2)(b) testified that Police Officer Gonzalez continued following him until Sharrott Avenue, where another car was waiting at the red light on Hylan. Attempting to evade the officer, § 87(2)(b) drove out into the intersection of Hylan and Sharrott and made a U-turn. He then drove from the front of Police Officer Gonzalez's vehicle to the back, driving between the passenger side of the police vehicle and the driver side of the car stopped at the light. The cars were about eight feet apart and § 87(2)(b) drove at a speed of about two to three miles per hour. Though § 87(2)(b) testified that the unrelated vehicle was stopped in the middle of the street and the police car in the rightmost lane (next to the sidewalk), Police Officer Gonzalez's BWC shows, at 1:01, the unrelated vehicle stopped next to the sidewalk, § 87(2)(b) motorcycle on the ground to the left (near the driver side) and in front of the vehicle, and Police Officer Gonzalez's vehicle to the left of/in front of § 87(2)(b) bike (Board Review #01).

§ 87(2)(b) continued that as soon as he cleared the back of the police car, he saw Police Officer Gonzalez's reverse lights come on. The police car then reversed, pinning § 87(2)(b) leg between the middle of the bumper and his bike. At this point, the passenger jumped off, causing § 87(2)(b) to begin to tip over slightly, though the bike was still mostly upright. The police car stopped, § 87(2)(b) soon gained control of the bike again and positioned the bike upright. The police car then started reversing again, continuing to press § 87(2)(b) right leg between the police car and his bike, until he completely fell onto his left side so that the bike was on top of his left leg. He tried to twist to the right (toward the police car) to see if he could free his right leg out from between his bike and the car. This twisting motion injured his back. Once § 87(2)(b) was already on the ground, the police vehicle continued to reverse onto the bike so that the bumper was pressing on the bike. § 87(2)(b) shouted about two times that the police car was on top of his leg. Police Officer Gonzalez then exited his vehicle, saw that § 87(2)(b) was pinned beneath his bike, then got back in his car and drove forward to remove the car from the motorcycle. The positioning of the two vehicles and § 87(2)(b) motorcycle is illustrated in a diagram attached to IA #89 (Board Review #13).

With Police Officer Gonzalez's vehicle hitting § 87(2)(b) motorcycle and causing it to fall to the ground, § 87(2)(b) motorcycle was scratched and was cracked, as seen in the photographs he provided (Board Review #03). According to § 87(2)(b) one crack made the motorcycle completely unusable. Police Officer Gonzalez also testified that § 87(2)(b) motorcycle had a crack to the plastic in front of the seat on the left side and damage to the windscreen. In addition, § 87(2)(b) testified that he suffered swelling in his leg and severe back pain, though no broken bones.

Though § 87(2)(b) testimony does not differ significantly from Police Officer Gonzalez's, the officer denied that he hit § 87(2)(b) with his car. Police Officer Gonzalez observed § 87(2)(b) slow down as he approached Sharrott Avenue, which made him think § 87(2)(b) planned to make a right onto Sharrott Avenue. Though he had technically planned to cease the stop, Police Officer Gonzalez decided to continue looking for § 87(2)(b). He pulled out into the intersection and looked all around him but discovered that § 87(2)(b) was no longer in front of him. Police Officer Gonzalez added that, at nearly 10:00 p.m., the intersection was not well-lit. Because he saw him



neither on Sharrott Avenue nor on Hylan Boulevard, Police Officer Gonzalez assumed, though did not observe, that § 87(2)(b) had made a U-Turn on Hylan around the unrelated vehicle, so that he was now behind that vehicle. At this point, Police Officer Gonzalez could still hear the engine of the motorcycle near his right side; it was “loud enough that he knew it was there,” but not “obscenely loud.” He could not estimate, based on how loud the engine was, how far away § 87(2)(b) was from Police Officer Gonzalez’s vehicle.

Police Officer Gonzalez put his vehicle in reverse, intending to turn to the left to complete an “L-turn” and continue on Hylan Boulevard from the way he came. Before beginning to reverse, Police Officer Gonzalez looked behind him using his side mirrors and rear-view mirror. He did not turn his head to look behind him. He started to reverse, and instantly – before he began turning the wheel – he heard a scream. He did not feel or hear his vehicle hit anything. He immediately stopped, put the car in drive, and looked around and did not see anything. He denied backing up his car any further after hearing the scream. He put his car in park, exited the vehicle, and walked to the rear, where he saw § 87(2)(b) on the ground with his motorcycle on top of him. His left leg was underneath the motorcycle and he was positioned just behind the back bumper on the passenger side of the police vehicle. The car was not touching the motorcycle. No part of § 87(2)(b) body other than his leg was underneath the bike. Police Officer Gonzalez did not observe the bike fall, nor did he know whether § 87(2)(b) did anything on his own that caused the bike to fall.

Though the female motorcycle passenger did not provide a statement to the CCRB, an Instagram direct message exchange between her and § 87(2)(b) friend (who was riding a motorcycle in front of § 87(2)(b) is attached in IA #67 (Board Review #04). The friend, who § 87(2)(b) stated went by § 87(2)(b) messaged the passenger, “Did the cops hit my friends bike,” to which she responded, “That’s how we were stopped.”

Police Officer Gonzalez’s BWC is completely dark from the beginning until about 40 seconds in (Board Review #01). At 00:40 it is clear the vehicle is in motion because the streetlights he passes are seen through the windshield. It is also clear that the vehicle’s police lights are off. At 00:46, he slows down and begins turning right onto Sharrott Avenue, appearing to turn about 45 degrees to the right (not a complete right turn). At 00:47, he stops, puts the vehicle in reverse, and turns the wheel slightly to the right. He reverses for about two seconds before stopping and parking the car. At 00:53, he turns the vehicle’s police lights back on; they are seen flashing at the top of the windshield. He then exits the car and approaches § 87(2)(b) and his fallen motorcycle at the rear passenger side of the car. This is the first time § 87(2)(b) motorcycle is seen on camera, and the best view is seen from 1:18-1:21. Another angle of the fallen motorcycle is seen at 1:43 in the footage. Because the audio does not start until 1:00, there is no audio evidence of § 87(2)(b) motorcycle getting hit by Police Officer Gonzalez’s car. At 1:19, it appears that PO Gonzalez’s vehicle’s rear bumper is damaged on the passenger side; it appears that the bumper is not aligned with the body of the vehicle by the rear tire.

Sergeant Charles Milatta of the Uniformed Promotions Training Unit interviewed Police Officer Gonzalez about the incident for the accident report, which states, “At TPO Vehicle 1 (motorcycle) was riding SB on Hylan Blvd when he suddenly conducted a U-Turn in front of an uninvolved vehicle which was waiting at red light. During the U-Turn motorist of Vehicle 1 did fall off motorcycle. Subsequently while driver of vehicle 2 (police car) was canvassing for vehicle 1 driver of vehicle 2 did locate vehicle 1. While positioning RMP around uninvolved vehicle; vehicle 2 did collide into vehicle 1. Driver of vehicle 1 sustained injuries due to his motorcycle falling from the failed U-turn and was not a result of police action. No other injuries to note” (Board Review #05). Police Officer Gonzalez clarified in his interview that he told Sergeant Milatta that § 87(2)(b) must have conducted a failed U-Turn, even though he never observed this action firsthand.



**Mediation, Civil, and Criminal Histories**

- This complaint was not suitable for mediation.
- A Notice of Claim search request was filed with the NYC Office of the Comptroller on March 25, 2022 (Board Review #10). The results of the search will be included in the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

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Squad: 16

|               |                    |                         |                   |
|---------------|--------------------|-------------------------|-------------------|
| Investigator: | <u>Esme Trontz</u> | <u>Inv. Esme Trontz</u> | <u>03/30/2022</u> |
|               | Signature          | Print Title & Name      | Date              |

|               |                   |                      |                   |
|---------------|-------------------|----------------------|-------------------|
| Squad Leader: | <u>Patrick Yu</u> | <u>IM Patrick Yu</u> | <u>03/30/2022</u> |
|               | Signature         | Print Title & Name   | Date              |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |